

THE DURGAPUR PROJECTS LIMITED

(A Government of West Bengal Enterprise)
Office of the Sr. Manager (S&P), Corporate
Administrative Building
Durgapur– 713201

CIN: U40102WB1961SGC025250

GSTIN: 19AABCT0595M1ZU



NOTICE INVITING TENDER

NIT No: DPL/PUR/ITC/06/26-27

Date: 02-07-2026

Procurement of SMS Package

Contents

Section- I

INTRODUCTION AND INVITATION	3
BID INFORMATION SHEET	3

Section- II

1.	General Guidance for e-tendering	4
2.	Registration of Bidders.....	4
3.	Eligibility Criteria	4
4.	Earnest Money.....	5
5.	Collection of Tender Documents	5
6.	Submission of Tenders	5
7.	Technical Proposal (Statutory Documents).....	6
8.	Security Deposit	6
9.	Submission/ Upload of Non-Statutory Documents	6
10.	Financial Proposal	7
11.	Additional Performance Security	7
12.	Conditional and Incomplete Tender	7
13.	Scope of Work and Technical Specification	7
14.	Bill of Quantity (BOQ)	7
15.	Opening and Evaluation of Tender	8
16.	Bid Validity	8
17.	Acceptance of Tender.....	8
18.	Return of Earnest Money Deposit	8
19.	Payment.....	9
20.	Inspection	9
21.	Time of Completion	9
22.	Place of Delivery	9
23.	LD Clause.....	9
24.	Force Majeure	9
25.	Cancellation of Order	10
26.	Price.....	10
27.	Guarantee / Warranty	10
28.	Paying Authority	10
29.	Controlling Officer	10
30.	Subletting of Work	10
31.	Jurisdiction	11
32.	Confidentiality Clause.....	11

Section- III

ANNEXURE-I: Scope of Work and Technical Specification.....	12
ANNEXURE-II: Self-declaration regarding non-Blacklisting	15
ANNEXURE-III: Bidder Information Sheet.....	16
ANNEXURE-IV: Proforma for Bank Guarantee	17
Annexure- V: Compliance Sheet.....	18
Annexure- VI: Mutual Non-Disclosure & Confidentiality Agreement.....	19

Section- I**INTRODUCTION AND INVITATION**

The Durgapur Projects Limited (DPL) is a Public Sector Enterprise under Department of Power, Government of West Bengal with Headquarters in Durgapur-713201, District: Paschim Bardhaman, West Bengal.

Tender is hereby invited by the AGM (S&P), DPL, through electronic tendering (e-tendering) from eligible and resourceful vendors having sufficient credential and financial capability for execution of the work.

BID INFORMATION SHEET

Aspect		Description of Aspect
Title of the NIT	:	Procurement of SMS Package
NIT NO. & Date	:	DPL/PUR/ITC/06/26-27 Date: 02-07-2026
Publishing Date	:	02-07-2026
Document Download Start Date	:	02-07-2026
Bid submission Start Date	:	02-07-2026
Bid submission End Date	:	15-07-2026 upto 4.00 pm
Technical Bid Opening Date	:	17-07-2026 upto 4.00 pm
Uploading of Technical Bid Evaluation Sheet	:	To be notified through system generated message
Financial Bid opening date	:	To be notified through system generated message
Uploading of Financial Bid Evaluation Sheet	:	To be notified through system generated message
Earnest Money Deposit (EMD)	:	₹ 500/- (Rupees Five Hundred only)
Mode of submission of EMD	:	Online only. No physical submission will be entertained.
Scope of Work	:	Detailed in Section-III: Particulars
Address of Communication	:	The AGM (S&P), Technical Building, The Durgapur Projects Limited, Durgapur – 703201 Email: corp.purchase@dpl.net.in

Section- II

1. General Guidance for e-tendering

Interested bidders are requested to log on to the website <https://wbttenders.gov.in> to participate in the Bid.

2. Registration of Bidders

Bidders willing to take part in the process of e-tendering are required to obtain Digital Signature Certificate (DSC) from any Authorized Certifying Authority (CA) under CCA, Govt. of India. (viz. nCode Solution, Safescrypt, e-Mudhra, TCS, MTNL, IDRBT) or as mentioned in e-tendering portal of GOWB <https://wbttenders.gov.in>. DSC is given as a USB e-Token. After obtaining the Class 2/3 Digital Signature Certificate (DSC) from the approved CA they are required to register the Digital Signature Certificates through the Registration system available in the Website.

3. Eligibility Criteria

Pre-Qualification Requirement (PQR) for Participation:

- a. Work/ Purchase Order received from Government/ Semi Government/ PSU/ Local Bodies/ Reputed Corporate for sale as Proof of Credentials for similar nature of job.
- b. Valid PAN Card.
- c. Valid GST Registration Certificate.
- d. The bidder should not have been blacklisted by Government of India, any State Government in India, any Central/State Public Sector Undertaking or by any multinational agency.
- e. The bidder shall be a valid Registered Telemarketer (RTM) under TRAI's TCCCPR-2018 framework.
- f. The bidder shall be registered as TM-DF (Telemarketer – Delivery Function) or TM-AF (Telemarketer – Aggregation Function).
- g. If bidders registered as TM-AF, the bidder should have valid commercial arrangements for SMS delivery with their associated TM-DF.
- h. The bidder shall have minimum three years' experience in providing SMS gateway Services.

Minimum eligibility for technical and financial criteria as per following table to be submitted:

#	Description	Document Proofs
	Technical Capability:	
01	The Bidder should have the experience of executing similar nature of job for which Tender has been invited. The value of said job experience should be as follows: Experience of having successfully completed similar works/supply during last 7 years ending last day of month previous to the one in which applications are invited should be either of the following: a. Three similar completed works/ supply costing not less than the amount equal to ₹ 9,600/-each Or b. Two similar completed works/supply costing not	Documentary evidence in support of work experience and fulfilling the requirement as spelt out in the Tender document must be submitted along with techno-commercial bid. These documents should be in the form of copies of Completion Certificates.

	less than the amount equal to ₹ 12,000/- Or c. One similar completed work/supply costing not less than the amount equal to ₹ 19,200/-	
02	The bidder shall be a valid Registered Telemarketer (RTM) under TRAI's TCCCP-2018 framework.	Copy of valid RTM registration.
03	The bidder shall be registered as TM-DF (Telemarketer – Delivery Function) or TM-AF (Telemarketer – Aggregation Function). Preference shall be given to bidders registered as TM-DF.	DLT Registration Details/ Screenshot from the DLT portal showing the Telemarketer Type and Registration Status.
04	Bidders registered as TM-AF shall submit details of their associated TM-DF and documentary evidence of valid commercial arrangements for SMS delivery.	Copy of the valid commercial arrangements with associated TM-DF, if bidder is TM-AF.
05	The bidder shall have minimum three years' experience in providing SMS gateway Services.	Documentary evidence of work experience.
06	The bidder should have complied TRAI regulations. SLA Commitment Certificate.	Undertaking for TRAI Compliance.
07	The bidder should have complied Technical Requirements and SLA Parameters.	Undertaking for Technical and SLA Compliance.
08	The Bidder was not blacklisted by any Government/ National or State level PSUs/ Reputed Private Companies and should not be involved in any litigation encompassing corrupt or fraudulent practices by any of the Government agencies in India.	An undertaking regarding non blacklisting should be submitted by the bidder.

4. Earnest Money

- a. Bidders must furnish the Earnest Money of ₹ 500/- by online payment through portal.
- b. The Earnest Money will be returned to the unsuccessful Bidders after placement of formal Order in favour of the successful bidder. No interest will be paid for this amount.
- c. No exemption is allowed from EMD submission.
- d. The earnest money shall be forfeited under following circumstances:
 - i) If any Tenderer proposes for increase in their quoted price after opening of bid and within validity period of their offer, the EMD may be forfeited.
 - ii) On refusal to enter into a contract after the award of contract.
 - iii) If the work is not commenced in spite of award of formal WO/ PO to the successful bidder.

5. Collection of Tender Documents

Tenders are to be submitted online and interested bidders will have to download the tender documents from the website <https://wbttenders.gov.in> directly with the help of the e-Token provided. This is the only mode of collection of tender documents. Details of submission procedure are given below.

6. Submission of Tenders

General Process of Submission is as follows.

- a. Tenders are to be submitted online through the Website <https://wbtenders.gov.in>. All the documents uploaded by the Tender Inviting Authority form an integral part of the bid. Bidders are required to upload all the tender documents along with the other documents as asked for in the Tender through the above website within the stipulated date and time as given in the Tender.
- b. Bidders must submit the Tenders in two covers i.e. “Technical” & “Finance”. Bidders must download tender specific documents (NIT/ SBD, BOQ etc) from <https://wbtenders.gov.in>, prepare the required documents and upload the scanned documents in Portable Document Format (PDF) to the portal in the designated locations.
- c. He needs to fill up the rates of items/percentage in the BOQ, downloaded for the materials, in the designated cell of the BOQ spreadsheet and upload the same in designated location of “Finance” cover.
- d. The documents uploaded must be scanned against any virus and digitally signed using the Digital Signature Certificate (DSC). Bidders should specially take note of all the addendum/corrigendum related to the tender and upload the latest documents as part of the tender.
- e. Bidders are to keep track of all the Addendum/ Corrigendum issued against the particular NIT and download copies of the above documents and merge the Addendum/ Corrigendum with respective NIT, if applicable. Any Addendum / Corrigendum, if done, becomes the integral part of the NIT, upload the declaration as per format given in Annexures.
- f. Bidder has to fill up all the Annexures as required and upload them.

7. Technical Proposal (Statutory Documents)

(To be submitted in Technical Cover)

The following documents in standard formats should be uploaded in Technical Cover.

- a. Notice Inviting Tender (NIT)/ Standard Bid Document (SBD) – The NIT /SBD as published are to be downloaded, then digitally signed and uploaded.
- b. PQR documents in support of Bidders’ Qualification.
- c. Technical Offer/ Technical Document along with technical compliance & BOQ sheet in un-priced format as mentioned below. Delivery schedule should also be mentioned here.

Note: Tenders will be summarily rejected if any of the above items in the statutory cover is missing.

8. Security Deposit

In case the final order value exceeds ₹ 5,00,000/-, the successful bidder has to submit a PBG @ 10% of the Order value and after receipt of the same, the EMD amount may be released to the successful bidder. If the successful bidder does not submit PBG as security deposit then Security deposit (SD) shall be uniformly collected @ 10% from Bills if the Order value exceeding ₹ 5,00,000/-.

9. Submission/ Upload of Non-Statutory Documents

Following Documents are to be uploaded along with the Bid.

- a. Purchase Order received from Government/ Semi Government/ PSU/ Local Bodies/ Reputed Corporate for sale as Proof of Credentials.
- b. PAN Card.

- c. Valid GST Registration Certificate.
- d. Self-declaration regarding non blacklisting.
- e. RTM Registration Certificate.
- f. DLT Registration Details/ Screenshot from the DLT portal.
- g. Copy of the documentary evidence of valid commercial arrangements for SMS delivery with their associated TM-DF, if bidder is TM-AF.
- h. Documentary evidence of at least three years of experience and self-certification of compliance with TRAI regulations.

10. Financial Proposal

(To be uploaded in Finance Cover)

The Financial proposal should contain the following Document in one Cover (Cover). Bill of Quantities (BOQ): The Bidder is to quote the Rate in the space Marked for quoting Rate in the BOQ. (Only downloaded copies of the above documents are to be uploaded, virus scanned and digitally signed by the Bidder).

11. Additional Performance Security

Additional Performance Security @ 10% of the tendered amount shall be obtained from the successful bidder if the accepted bid value is 80% or less of the estimated cost. Additional Performance Security is refundable after the expiry of 01 (one) month from the date of satisfactory completion of the job.

12. Conditional and Incomplete Tender

Conditional and incomplete tenders are liable to summary rejection.

13. Scope of Work and Technical Specification

As per Annexure- I.

14. Bill of Quantity (BOQ)

#	Item Description	Quantity
1	SMS Package Cost	1,00,000 Nos
2	SMS Setup Cost	1 No
3	DLT Registration Charge	1 No

- Bidder must fill up & Submit this BOQ sheet with all cells filled-up. Non- submission of this Sheet will lead to rejection of the bid.
- Job is composite nature and L1 will be evaluated on totality basis.
- The validity of SMS Package will be One Year.
- The SMS Setup cost is one time cost which includes API cost and all other cost for smooth integration of SMS with the DPL existing system.
- DLT Registration Charge will be at per actual cost to be paid to TRAI for PE-TM binding, header registration, template registration, and all activities necessary for compliance with TRAI's DLT framework. The validity of the registration as per TRAI guideline.
- Bidders must explicitly mention all terms and conditions in the technical offer.

15. Opening and Evaluation of Tender

- a. Opening of Technical Proposal Technical proposals will be opened by AGM (S&P), DPL, or his Authorized Representative electronically from the website stated in Clause 1, using their Digital Signature Certificate.
 - ii. Technical Cover (Statutory Documents) would be opened first and if found in order, Cover for Non-statutory Documents will be opened. If there is any deficiency in the Statutory Documents, the tender will summarily be rejected.
 - iii. Decrypted (Transformed into readable formats) documents of the Non-statutory cover will be downloaded, and handed over to the Tender Evaluation Authority.
- b. Uploading of Summary List of Technically Qualified Bidders
 - i. Pursuant to scrutiny and decision of the Technical Evaluation Authority, the summary list of eligible Bidders for which their Financial Proposals will be considered will be uploaded in the web portals.
 - ii. While evaluation, the Committee may summon of the Bidders and seek clarification / information or additional documents or original hard copy of any of the documents already submitted and if these cannot be produced within the stipulated timeframe, their proposals will be liable for rejection.
- c. Opening and evaluation of Financial Proposal
 - i. Financial proposals of the Bidders declared technically eligible by the Tender Evaluation Authority will be opened electronically from the web portal on the prescribed date, normally after two working days after the date of publication of final summary list of the Bidders or earlier as per the requirement.
 - ii. The encrypted copies will be decrypted and the rates will be read out to the bidders, present at that time of bid opening.
 - iii. After evaluation of Financial Proposal, by Tender Evaluation authority, the final summary result, name of bidder and the rates quoted by them against supply and delivery of material will be uploaded.
 - iv. The Tender Accepting Authority may ask any of the Bidders to submit analysis to justify the rate quoted by the Bidders.
 - v. Lowest rate for each item will be considered separately for selection of successful L1 Bidder for that item.

16. Bid Validity

The Bid will be valid for 120 days from the date of opening of the Financial Bid.

17. Acceptance of Tender

Bidders must quote for at least one item mentioned in BOQ sheet. Bids with Lowest valid rate should normally be accepted. However, the Tender Accepting Authority does not bind himself to do so and reserves the right to reject any or all the tenders, for valid reasons and also reserves the right to consider the offer in composite manner or may split the order, alter the quantity of any or all Bidders without assigning any reason whatsoever.

18. Return of Earnest Money Deposit

The Earnest Money of the entire unsuccessful Bidders will be returned, after placement of the Work Order in favour of the successful bidder automatically from the e-tender portal.

19. Payment

- SMS Package Cost: 100% payment will be released after successful activation of SMS Balance in the portal and confirmation of successful SMS delivery through application.
- SMS Setup Cost: 100% payment will be released after successful setup of SMS with DPL's existing application and confirmation of successful SMS delivery through application.
- DLT Registration Charge: 100% payment will be released after obtaining DLT Registration and other documents from TRAI through application.
- Any payment will be released on submission of Tax Invoice and duly certified by the authorised representatives of IT Cell.

20. Inspection

Inspection will be done by the representative of IT Cell, DPL at the time of installation and support.

21. Time of Completion

The entire supply and installation job is to be completed within 30 calendar days from placement of Work Order. The validity of the SMS Pack will be at least One Year and the Support will be also one year from the completion of the installation and commissioning of the service.

22. Place of Delivery

Delivery to be done at DPL, Durgapur and the point of installation will be at Durgapur.

23. LD Clause

- a) Time and date of delivery shall be essence of the order. "in the event of any delay in the supplies of ordered materials beyond the stipulated date of delivery / delivery schedule including any extension permitted in writing, DPL reserves the right to recover from the supplier as liquidated damage at a sum equivalent to 0.5% of the value of supplies/ materials / equipment in delay for each week of delay and part thereof subject to a maximum of 5% of the total value of the order".
- b) Denial clause informs supplier/ service provider that the DPL reserves the right to admit additional payment due to upward revision of statutory levies beyond the original delivery schedule in case supplier/service provider fails to deliver the goods as per schedule. The standard text of this clause is as under: "Variations in the rates of statutory levies within the original delivery schedule will be allowed if taxes are explicitly mentioned in the contract/ supply order and delivery has not been made till the revision of the statutory levies. DPL reserves the right not to reimburse the enhancement of cost due to increase in statutory levies beyond the original delivery period of the supply order/ contract even if such extension is granted without imposition of LD."

24. Force Majeure

- a) The supplier / contractor shall not be held liable for delay or failure to supply the materials / equipment or work completion for reasons of force majeure such as act of God, act of war, act of public enemy, natural calamities, fires, floods, frost, strikes, lock-outs. Only these causes having duration of more than seven (7) days shall be considered for force majeure.
- b) The vendors shall within ten days from the beginning of such delay inform to DPL in writing the cause of delay. DPL shall verify the facts justified. This is also to be included in NIT.
- c) No price variation shall be allowed during the period of force majeure and liquidated damages would not be levied for this period.
- d) At the option of DPL the order may be cancelled. Such cancellation would be without any liability whatsoever on the part of DPL. In the event of such cancellation suppliers shall refund any amount in advance paid to him by DPL and deliver back any materials issued to him by DPL and release facility if any, provided by DPL.

25. Cancellation of Order

DPL reserves the right to cancel the order in part or in full by giving two weeks' notice thereof, if:

- i) The Supplier fails to comply with any of the terms of the order
- ii) The Supplier becomes bankrupt and goes in to liquidation
- iii) The Supplier makes a general assignment for the benefit of the Creditors and
- iv) Any receiver is appointed for the property owned by the supplier.

26. Price

GST & Other Charges should be mentioned clearly. Lowest bid will be evaluated on the basis of Landed Cost i.e. inclusive of GST and Other Charges. Rate will be considered in totality.

27. Guarantee / Warranty

01 (One) year from the date of commissioning.

28. Paying Authority

Manager (F&A), Payment Section, DPL.

29. Controlling Officer

DGM (IT), IT Cell, DPL.

For technical clarification- contact may be done with
DGM (IT), IT Cell, DPL or his authorised representatives
e-mail ID- it@dpl.net.in
Phone No- 9434709053

30. Subletting of Work

The Works and services shall not be assigned or sublet and on any attempt to do so, the awardee bidder shall be liable to be terminated. The Controlling Officer shall have the power to adopt any of the clauses including the termination of the contract, as he may deem best suited in the interest of DPL.

31. Jurisdiction

All legal proceedings in connection with the Works and services will be subject to the Jurisdiction of Hon'ble High Court, Kolkata.

32. Confidentiality Clause

Party will maintain strict confidentiality and sign Non-Disclosure Agreement as per annexure-VI

SECTION- III

ANNEXURE-I: Scope of Work and Technical Specification

Scope of Work:

a. Objective

The objective of this tender is to empanel/ select a service provider for providing SMS Gateway Services for delivery of Transactional and Service SMS messages generated from the existing applications through secure API integration. The selected bidder shall provide a robust, scalable, secure, and TRAI-compliant SMS platform for transmission of SMS messages to subscribers of all telecom operators across India.

b. Scope of Services

The selected bidder shall:

i) SMS Gateway Services

- Provide SMS gateway connectivity for sending Transactional and Service SMS messages.
- Facilitate delivery of SMS to all telecom operators in India.
- Provide web-based portal and API-based access for SMS transmission.
- Ensure high availability and uninterrupted service throughout the contract period.

ii) API Integration

- Provide REST API, HTTP API, HTTPS API, SMPP or equivalent integration interfaces.
- Support integration with existing applications without requiring major modifications.
- Provide API documentation, sample code, technical support, and testing environment.
- Support OTP, alerts, notifications, acknowledgements, status updates, and system-generated messages.

iii) DLT Compliance

- Support registration and management of:
 - Principal Entity (PE)
 - Sender Headers
 - Content Templates
 - PE-TM Binding
- Ensure compliance with TRAI regulations and amendments issued from time to time.
- Facilitate onboarding and maintenance activities on DLT platforms.

iv) Message Delivery and Reporting

- Provide real-time delivery reports (DLR).
- Provide message status tracking.
- Provide downloadable reports in Excel/ CSV/ PDF formats.
- Maintain detailed logs of SMS transactions.

v) Technical Support

- The Durgapur Projects Limited (DPL) is/will be registered as a Principal Entity (PE) on the DLT platform. The successful bidder shall assist DPL in PE-TM binding, header registration, template registration, and all activities necessary for compliance with TRAI's DLT framework.
- Provide helpdesk support during business hours and emergency support on 24x7 basis.
- Nominate dedicated account manager and technical support engineer.
- Resolve service issues within stipulated SLA timelines.

- vi) Security
 - Ensure secure transmission through HTTPS/ TLS.
 - Maintain confidentiality of all data.
 - Prevent unauthorized access to SMS systems and APIs.
 - Comply with applicable Government of India cyber security guidelines.
- c. Contract Period

The contract shall initially be valid for one year and may be extended on mutually agreed terms subject to satisfactory performance.
- d. Quantity

SMS credits/ packages of 100000 Nos valid during the contract period.

Technical Specifications:

- a. Functional Requirements
 - SMS Type
 - Transactional SMS
 - Service SMS
 - OTP SMS
 - Alert and Notification SMS
 - API Support
 - REST API
 - HTTPS API
 - SMPP connectivity
 - Unicode and English SMS support
 - Delivery Capability
 - Delivery to all telecom operators in India.
 - Real-time message submission.
 - Delivery acknowledgement.
 - Reporting
 - Real-time DLR.
 - Dashboard for message monitoring.
 - Downloadable reports.
 - Template Management
 - DLT template mapping.
 - Sender ID/ Header management.
 - Template approval assistance.
- b. Performance Requirements
 - SMS Gateway Availability: Minimum 99.9%.
 - API Uptime: Minimum 99.9%.
 - Delivery Report Availability: Real-time or near real-time.
 - Scalability: System shall support bulk SMS campaigns and high-volume transactional traffic.
- c. Security Requirements
 - HTTPS/ TLS encrypted communication.
 - Role-based access control.
 - Audit trail of all SMS transactions.
 - Secure storage of transaction logs.
 - Compliance with applicable CERT-In and Government Cyber Security Guidelines.
- d. Service Level Agreement (SLA)

- Parameter Requirement
 - Service Availability: $\geq 99.9\%$
 - Critical Issue Response Time: Within 30 Minutes
 - Major Issue Resolution: Within 4 Hours
 - Minor Issue Resolution: Within 1 Business Day
 - Delivery Report Availability: Real-time/ Near Real-time

Scope of Work

#	Item Description	Quantity
1	SMS Package Cost	1,00,000 Nos
2	SMS Setup Cost	1 No
3	DLT Registration Charge	1 No

ANNEXURE-II: Self-declaration regarding non-Blacklisting

Declaration

A. I,----- on behalf of -----(name of the company)-----
----- do hereby declare that I have gone through all the provisions of NIT No.
-----dated ----- (including subsequent Addenda/ Corrigenda and other documents)
and clearly understood the implications of all those provisions and submitting my / our bid adhering
all the provisions of said NIT (including subsequent Addenda/ Corrigenda and other documents).

B. I, _____ on behalf of M/s. _____ (Name and address of the bidder)
hereby declare that M/s. _____ (Name of the bidder) is not
blacklisted/ debarred by any Government department/ Public Sector Undertakings/ Other
Government Agencies.

C. I, _____ on behalf of M/s.(name and address of the bidder) do
hereby declare that no additions/ deletions/ corrections have been made in the downloaded/
supplied tender document and the tender document submitted by M/s.

(Name of the bidder) is identical to the one appearing in
the procuring entity's portal/supplied by the procuring entity.

I, hereby, further declare that all the above information declared hereinabove, are true to the best of
my knowledge and in the event any of the above information at a later stage, is found to be false, by
the Procuring Entity, the Procuring Entity shall be at liberty to take any action as deemed fit at my/
our sole risk and cost.

Signature of Bidder's Authorized representative with Date

Seal of the Company

Note: The above declaration should be submitted in the letter head of the company.

ANNEXURE-III: Bidder Information Sheet

Bidder Information Sheet

(To be filled, signed and attached)

1.0	Proposal No. and Date	
2.0	Validity of offer from date of opening of bid	
3.0	Name and Communication Details	
3.1	Full legal name of Prime Bidder	
3.2	Registered Office details	
a)	Address	
b)	Contact Telephone Nos.	
c)	Email ID	
d)	Person to be contacted	
4.0	Nature/ status of candidate firm (whether sole Proprietary/ Partnership)/ Private Limited/ Public Limited/ Public sector)	

Signature of Bidder's Authorized representative with Date

Seal of the Company

ANNEXURE-IV: Proforma for Bank Guarantee

PROFORMA FOR BANK GUARANTEE

(To be stamped in accordance with Stamp Act, if any, of the Country of the issuing Bank)

Bank Guarantee No.:

Date:

To
The Sr. Manager (S&P), Corporate
The Durgapur Projects Limited
Administrative Building, Durgapur – 713201
Dear Sir,

In accordance with your NIT No: _____ M/s _____ (Name of
Participating Contractor) having its Registered Head Office at _____
the Bidder) wish to participate in the said Tender for _____
(hereinafter called
(Name of Job)).

As an irrevocable Bank Guarantee against Bid Security for an amount of _____ is required to be
submitted by the Bidder as a condition precedent for participation in the said Tender, which
amount is liable to be forfeited on the happening of any contingencies mentioned in the Tender
Document, we, the _____ Bank at _____ having our Head Office/ Registered
Office at (Address of Bank) guarantee and undertake to pay immediately on demand by The
Durgapur Projects Limited the amount of _____ (in words and figures) without any
reservation, protest, demur and recourse. Any such demand made by said Procuring Entity shall be
conclusive and binding on us irrespective of any dispute of difference raised by the Bidder.

This Guarantee shall be irrevocable and shall remain valid up to @ _____ (six months from the
Closing date of submission of bid) with a claim period of another 3(three) months. If any further
extension of this guarantee is required, the same shall be extended to such required period on
receiving instructions from M/s _____ (Participating Bidder) on whose
behalf this Guarantee is issued.

All rights of The Durgapur Projects Limited under this Guarantee shall be forfeited and the Bank
shall be relieved and discharged from all liabilities there under unless the DPL brings any suit or
action to enforce a claim under this Guarantee against the Bank within ninety (90) calendar days
from the above-mentioned expiry date of validity or, from that of the extended date.

In witness whereof the Bank, through its authorized Officer, has set its hand and stamp on this day of
Year at.

@ This date should be initially for six months from the Closing date of submission of bid and may
be extended from time to time

Annexure- V: Compliance Sheet

#	Criteria	Complied	Document Submitted
01	The Bidder should have the experience of executing similar nature of job for which Tender has been invited. The value of said job experience should be as follows: Experience of having successfully completed similar works/supply during last 7 years ending last day of month previous to the one in which applications are invited should be either of the following: d. Three similar completed works/ supply costing not less than the amount equal to ₹ 9,600/-each Or e. Two similar completed works/supply costing not less than the amount equal to ₹ 12,000/- Or f. One similar completed work/supply costing not less than the amount equal to ₹ 19,200/-	Yes/ No	Yes/ No
02	The bidder shall be a valid Registered Telemarketer (RTM) under TRAI's TCCCPR-2018 framework.	Yes/ No	Yes/ No
03	The bidder shall be registered as TM-DF (Telemarketer – Delivery Function) or TM-AF (Telemarketer – Aggregation Function). Preference shall be given to bidders registered as TM-DF.	Yes/ No	Yes/ No
04	Bidders registered as TM-AF shall submit details of their associated TM-DF and documentary evidence of valid commercial arrangements for SMS delivery.	Yes/ No	Yes/ No
05	The bidder shall have minimum three years' experience in providing SMS gateway Services.	Yes/ No	Yes/ No
06	The bidder should have complied TRAI regulations. SLA Commitment Certificate.	Yes/ No	Yes/ No
07	The bidder should have complied Technical Requirements and SLA Parameters.	Yes/ No	Yes/ No
08	The Bidder was not blacklisted by any Government/ National or State level PSUs/ Reputed Private Companies and should not be involved in any litigation encompassing corrupt or fraudulent practices by any of the Government agencies in India.	Yes/ No	Yes/ No
09	Earnest Money of ₹ 500/- Deposited	Yes/ No	Yes/ No
10	Acceptance of all the terms and conditions of NIT including the Payment terms.	Yes/ No	Yes/ No

Signature of the Bidder with Date & Seal

Note Below: To be uploaded with the Technical Offer

Annexure- VI: Mutual Non-Disclosure & Confidentiality Agreement

Mutual Non-Disclosure & Confidentiality Agreement

This Agreement is entered into as of Date _____ by and between **The Durgapur Projects Limited** ("First Party") with its Registered office at Office address, and Vendor Name ("Second Party") with its principal place of business at <address> . (collectively, "the Parties").

This agreement is intended to facilitate the exchange of information between **The Durgapur Projects Limited** and Second Party, for various purposes. **The Durgapur Projects Limited** and Second Party desire to disclose, on a confidential basis, certain information, process, clients, business contacts and documents considered confidential and/or proprietary by **The Durgapur Projects Limited** and/or Second Party concerning their respective businesses. **The Durgapur Projects Limited** and Second Party wish to maintain the confidentiality and/or the proprietary nature of the confidential information disclosed. In consideration of the mutual promises and covenants set forth herein and for other good and valuable consideration, the receipt and adequacy of which is hereby acknowledged, the Parties hereto agree as follows:

CONFIDENTIAL INFORMATION:

1. The Parties agree that information disclosed orally or in writing or made available by either Party ("Disclosing Party") to the other Party ("Recipient"), including, but not limited to, information acquired from employees, trade secrets, strategic plans, invention plans and disclosures, customer information, suppliers, IT Infrastructure (Hardware, Software & Network), Application software, distribution channels, marketing studies, intellectual property, information relating to process and products, designs, business plans, business opportunities, marketing plans, finances, research, development, know-how or personnel, confidential information originally received from third-parties, information relating to any type of technology, and all other material whether written or oral, tangible or intangible, shall be deemed "Confidential Information". In addition, the existence and terms of this Agreement shall also be treated as Confidential Information. The parties agree that any Confidential Information disclosed prior to the execution of this Agreement was intended to be and shall be subject to the terms and conditions of this Agreement.

RESTRICTIONS AND EXCEPTIONS:

2. The Parties agree to maintain the confidentiality of the Confidential Information and to prevent its unauthorized dissemination or use for a period of 3 year from date of disclosure; provided, however, that this Agreement shall impose no such obligations with respect to Confidential Information which is
 - i) publicly known or becomes publicly known through no unauthorized act of Recipient.
 - ii) known by the Recipient prior to the date of this Agreement, which prior knowledge is evidenced in writing,
 - iii) disclosed to the Recipient by a third party with the right to make that disclosure, or
 - iv) independently developed by the Recipient without any use of or reliance upon the disclosed Confidential Information.

In the event of a disclosure required pursuant to a requirement of a governmental agency or law, the Party seeking to disclose Confidential Information will provide to the Disclosing Party notice prior to such disclosure in order to afford the Disclosing Party a reasonable opportunity to file objections to the disclosure with the appropriate entity.

3. The parties expressly agree that the Recipient shall not use Confidential Information in the development of any products or services for its own account or for the account of a third party unless expressly agreed to by the Disclosing Party in writing. Further, the Parties agree not to use the Confidential Information for purposes other than that necessary to consider the possibility of

entering into a business relationship or transaction between the Parties. The Recipient shall protect the Confidential Information by using the same degree of care, but no less than reasonable care, to prevent the unauthorized use, dissemination or publication of the Confidential Information as the Recipient uses to protect its own Confidential Information. The Recipient shall limit its internal disclosure of the Confidential Information to only those employees and agents who have a need to know the information for the limited purpose of the proposed business relationship between the Parties. <DPL> and Second Party agree that it will direct its employees and agents to maintain the confidentiality of the Confidential Information.

The obligation not to disclose shall not be affected by bankruptcy, receivership, assignment, attachment or seizure procedures, whether initiated by or against Recipient, nor by the rejection of any agreement between the Disclosing Party and Recipient, by a trustee of Recipient in bankruptcy, or by the Recipient as a debtor-in-possession or the equivalent of any of the foregoing under local law.

CONTINUED DEVELOPMENT EFFORTS:

4. The Parties acknowledge and agree that both parties have been engaged and continue to engage in activities to develop the technology that is the subject of a potential transaction or business relationship between <DPL> and Second Party and acknowledge and agree that nothing contained in this Agreement shall restrict or prohibit either party from continuing such development efforts whether or not with each other, and that such continuing development efforts will not be considered a breach of the terms and provisions of this Agreement.
5. Neither this Agreement nor the disclosure or receipt of Confidential Information shall constitute or imply any promise or intention to make any purchase of products or services by either party or its affiliated companies or any commitment by either party or its affiliated companies with respect to the present or future marketing of any product or service.

OWNERSHIP OF CONFIDENTIAL INFORMATION:

6. All Confidential Information, and all material items delivered by the Disclosing Party to the Recipient, remains the property of the Disclosing Party and no license or other rights in the Confidential Information are granted to the Recipient by this Agreement or by the act of disclosure. No rights, obligations, representations or terms other than those expressly set forth herein are to be implied from this Agreement. In particular, without limitation no license is hereby granted directly or indirectly to either <DPL> or Second Party or their respective employees (a) under any patent, trademark, trade secrets or copyright, or (b) to use the other Party's name, trade names, trademarks, service marks, logos or designs for any purpose, without the other Party's prior written permission.

RETURN OF MATERIALS AND DOCUMENTS:

7. Upon the written request of the Disclosing Party, the Recipient shall return to it (or, at the request of the Disclosing Party, erase or destroy) all materials that contain or embody any Confidential Information of the Disclosing Party, including but not limited to all computer programs, documentation, notes, plans, drawings, and copies thereof. Return or destruction of such material shall not relieve the Recipient of its obligations of confidentiality. Upon the request of the Disclosing Party, the Recipient will certify that it has complied with the provisions of this paragraph.

NON - CIRCUMVENT:

8. In addition the Parties agree to not circumvent each other and work with business associates, clients, and other third party vendors introduced by each party in this case. The parties may introduce each other to companies that are interested in acquiring companies OR being acquired. It is understood that the introducing party retains ownership of such a referral and that the other party cannot deal directly with such referred Second Party without the written consent of the referring party. This non-circumvent provision shall expire at the end of One (1) year.

DISCLOSURE UNDER LEGAL PROCESS:

9. Notwithstanding paragraph 2 above, if either party becomes compelled by law or regulation to divulge any Confidential Information of the other party, the party receiving the order to divulge will provide the party that disclosed the Confidential Information under this Agreement with immediate written notice so that it may seek an appropriate protective order or other remedy. In addition, the Recipient agrees to fully cooperate with the Discloser's efforts to seek a protective order. The Recipient may disclose the Confidential Information as provided in the protective order, or, if no protective order is obtained, the Recipient may disclose Confidential Information only to the extent that it reasonably believes it is compelled to disclose. Any waiver by the Discloser in relation to this Section 3 shall not be deemed continuing or a waiver of any other term or condition of this Agreement.

NON-SOLICITATION:

10. For a period of One (1) year after its termination or completion of services hereunder, BOTH PARTIES agree that it will not solicit for hire, or hire or advice or assist others with the opportunity to do same for any employee of the OTHER PARTY who was associated or was performing services pursuant to this Agreement.

REMEDY:

11. The Parties hereby acknowledge that unauthorized disclosure or use of Confidential Information and breach of Clauses 7 and 8 could cause significant and irreparable harm, which may be difficult to ascertain, and that money damages would be inadequate compensation. Accordingly, the Parties agree that the Disclosing Party shall have the right to seek and obtain immediate injunctive relief from breaches of this Agreement in addition to any other rights and remedies it may have from any court of competent jurisdiction.
12. Neither Party may use the name, logo, or trademarks of the other in connection with any advertising or publicity materials or activities without the prior written consent of the other Party.
13. No waiver of any term of this Agreement will be effective unless and until it is in writing and signed by both parties to this Agreement. Failure by either party at any time to require performance by the other party or to claim a breach of this Agreement will not be construed as a waiver of any right under this Agreement.
14. This Agreement may not be assigned and shall be governed by and interpreted under the law of Republic of India.
15. This Agreement constitutes the entire agreement and understanding between the parties with respect to Confidential Information, Non-Circumvent and Non-Solicit Agreements and it supersedes all other prior written or oral agreements, representations and understandings regarding the subject matter of this Agreement. This Agreement may be amended only by a written document executed by both The Durgapur Projects Limited and Second Party.
16. A finding by any court of competent jurisdiction that any provision of this Agreement or part thereof is unenforceable shall not affect the enforceability of the remaining provisions of this Agreement.

UNDERSTOOD AND AGREED:

FOR: **The Durgapur Projects Limited**

FOR: <Second Party>

By: <AUTHORIZED SIGNATORY>
Designation:

By: <AUTHORIZED SIGNATORY>
Designation:

Date:

Date: